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Case Number: 25TRCV03754 Hearing Date: August 12, 2026 Dept: B

Moving Parties: Defendants Camille

Morrissey and Richard Owen Minars

Responding Party: Plaintiff Nikita Krymov

(1)

Motion

to Compel Further Request for Production of Documents

(2)

Motion

to Compel Further Responses to Request for Admissions

The Court considered the moving, opposition, and reply papers.

RULING

See below.

BACKGROUND

On October

31, 2025, plaintiff Nikita Krymov, a minor, by Simon Krymov, guardian ad litem, filed a complaint against Matt Spraggins, Timmy Anderson, Chasen Lafolette, Camille Morrissey, and Richard Owen Minars for (1) general negligence, (2) premises liability, (3) negligent supervision, (4) assault, (5) battery, and (6) IIED.

On

April 24, 2026, defendants Camille Morrissey and Richard Own Minars filed a cross-complaint against cross-defendants Simon Krymov, Larisa Ispravnikova, Matt Spraggins, Timmy Anderson, and Chasen Lafolette for indemnity, equitable contribution, declaratory relief, general negligence, and negligent supervision of a minor.

LEGAL

AUTHORITY

45-Day

Rule: This motion must be served within 45 days after service of the response in question (extended if served by mail, overnight delivery, or fax; see CCP §1013); otherwise, the demanding party waives the right to compel any further response to the CCP §2031.010 demand. CCP §§2031.310(c), 2016.050; see *Sperber v. Robinson* (1994) 26 Cal. App. 4th 736, 745. The 45-day time limit is mandatory and jurisdictional. *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410. The parties, however, can also agree in writing on a specific later date by which to file the motion to compel. CCP §2031.310(c).

Meet-and-Confer

Requirement: The motion to compel further responses must be accompanied by a declaration showing “a reasonable and good faith attempt” to resolve the issues outside of court (so-called “meet and confer”). CCP §§2016.040, 2031.310(b)(2).

Separate

Statement: Any motion involving the content of a discovery request or the responses to such a request shall be accompanied by a separate statement. This includes a motion to compel further responses to demand for inspection of documents or tangible things. CRC Rule 3.1020(a)(3).

Request

for Production of Documents

On

receipt of a response to an inspection demand, the demanding party may move for an order compelling further responses to the demand if the demanding party deems that any of the following apply:

- (1) a statement of compliance with the demand is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; or
- (3) an objection in the response is without merit or too general. CCP § 2031.310(a).

A

statement of compliance shall state that the production, inspection, and related activity demanded will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production. CCP § 2031.220.

“A representation

of inability to comply with [a] particular demand for inspection . . . shall affirm that a diligent search and reasonable inquiry has been made in an effort to comply with that demand. This

statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. This statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” CCP § 2031.230.

A

motion to compel further response to requests for production “shall set forth specific facts showing good cause justifying the discovery sought by the inspection demand.” CCP §

2031.310(b)(1). “To establish ‘good

cause,’ the burden is on the moving party to show both: [1] Relevance to the subject matter (e.g., how the information in the documents would tend to prove or disprove some issue in the case); and [2] Specific facts justifying discovery (e.g., why such information is necessary for trial preparation or to prevent surprise at trial).

The fact that there is no

alternative source for the information sought is an important factor in establishing ‘good cause’ for inspection.

But it is not essential in

every case.” Weil & Brown, Civil Procedure Before Trial, 8:1495.6 (citations omitted). “Declarations are generally used to show the requisite ‘good cause’ for an order to compel inspection. The declarations must contain ‘specific facts’ rather than mere conclusions.” Id. at 8:1495.7 (citation omitted). “The declarations may be on information and belief, if necessary. However, in such cases, the ‘specific facts’ supporting such information and belief (the sources of the information) must also be alleged.” Id. at 8:1495.8 (citation omitted). “Most declarations are made by the attorney for the moving party, who is usually more familiar with the relevancy and ‘specific facts’ constituting ‘good cause’ for inspection.” Id. at 8:1495.9.

“If ‘good cause’ is shown by the moving party, the burden is then on the responding party to justify any objections made to document disclosure (the same as on motions to compel answers to interrogatories or deposition questions. . .).” Id. at 8:1496 (citation omitted).

Request for further admissions

CCP

§2033.290(a) which provides: “On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply: (1) An answer to a particular request is evasive or incomplete. (2) An objection to a particular request is without merit or too general. . . . (d) The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

DISCUSSION

Defendants Camille

Morrissey and Richard Owen Minars request that the Court compel plaintiff Nikita Krymov to provide further responses to Request for Production of Documents, Set One, Nos. 2, 3, 4, 5, 19, 20, 25, 26, 27, 28, 29, and 30 and Request for Admissions, Nos. 11, 14, 15, and 20.

The complaint alleges

that plaintiff was a lawful invitee at defendants' residence located at 4815 West 131st Street, Hawthorne.

Complaint, ¶10. At all relevant

times, defendant Camille Morrissey owned, leased, rented, occupied, and/or controlled the party property where the gathering occurred. These defendants knew or should have known that dangerous and unsafe conditions existed or were likely to exist on the premises and negligently failed to monitor, supervise, or secure the property to prevent foreseeable harm to guests, including plaintiff. Id., ¶11.

On October 31, 2023, plaintiff, then fifteen years old, was lawfully on the property when he was suddenly and without warning attacked and physically assaulted by several juveniles who were also present at the premises. Id., ¶12.

Defendant Camille Morrissey failed to properly supervise the individuals present on the property and failed to exercise reasonable care to ensure the safety of guests, including plaintiff.

Id., ¶13. As a result of the

assault, plaintiff suffered severe head injuries. Id., ¶14.

Defendants assert that

on March 17, 2026, they propounded written discovery requests on plaintiff. Plaintiff served responses on

April 20 and signed verifications on April 21.

On April 21 and 27, defense counsel sent meet and confer emails to plaintiff's counsel requesting production.

Extensions were granted to meet and confer further and to file motions, if necessary.

The Court rules as

follows:

Request

for Production of Documents, Set One

As to Nos. 2-5, 19, 20, and 25-30, plaintiff asserted objections and responded that he "will produce non-privileged documents in his possession, custody, or control."

Defendants contend that plaintiff had not produced any documents as of the filing of the motions.

In opposition, plaintiff argues that the motion is moot as to Nos. 2, 3, 4, 5, 19, 26, 29, and 30.

Plaintiff asserts that he served his original document production on April 23 and again on June 25. On July 30, plaintiff contends, he also served verified supplemental responses and a further document Bates-stamped document.

Plaintiff states that the supplemental responses either identify the responsive production or that after a diligent search and reasonable inquiry no responsive documents exist or ever existed.

Plaintiff further argues that defendants have not shown good cause for Nos. 20, 25, 27, and 28, which “seek a minor’s wholesale medical history and private family communications.”

The Court finds that the motion is MOOT as to Nos.

2, 3, 4, 5, 19, 26, 29, and 30. As to

Nos. 20 (all communications between plaintiff and any third-party relating to his injuries), 25 (all medical records related to any medical visits, consults, or treatments plaintiff received in the seven years before the incident), 27 (all imaging reports related to any imaging plaintiff received in the seven years before the incident), and 28 (all imaging films related to any imaging plaintiff received in the seven years before the incident), the requests are overly broad. Defendants have not met their burden of showing good cause. The motion is DENIED as to No. 20. It is GRANTED IN PART as to Nos. 25, 27, and 28, limited to the three years preceding the incident, related to body parts for which injuries were sustained.

Request
for Admissions, Set One

No. 11 – admit that
plaintiff has no documentation supporting his loss of earning capacity claim. Plaintiff responded N/A.

No. 14 – admit that
plaintiff did not suffer any impairment of earning capacity (future ability to earn wages or income) as a result of this accident. Plaintiff responded, “Deny.”

No. 15 – admit that
plaintiff is not making a claim for loss of earning capacity as a result of

this accident. Plaintiff responded that he denied to the extent that plaintiff can recover for loss of earning capacity as pled and admitted to the extent that the exact words "earning capacity" are not used in the complaint.

As to Nos. 11, 14, and 15, defendants contend that plaintiff's responses are evasive, contradictory, and incomplete. Defendants assert that they cannot reasonably infer whether plaintiff is making a claim for lost earning potential.

In opposition, plaintiff asserts that he served verified supplemental responses. He unqualifiedly denies No. 11 and 15. As to No. 14, he argues that "deny" is a proper response.

No. 20 – admit that plaintiff had private insurance at the time of the accident that would have provided plaintiff coverage for visits or treatment from a licensed healthcare provider for plaintiff's injuries. Plaintiff responded that he made a reasonable inquiry and the information known or readily obtainable is insufficient to enable plaintiff to admit or deny.

Defendants argue that plaintiff's response is evasive and incomplete.

In opposition, plaintiff asserts that he served a supplemental response that admits No. 20 and thus the motion is moot as to the request.

In light of the supplemental responses, the motion is MOOT as to Nos. 11, 15, and 20. The motion is DENIED as to No. 14.

Sanctions

Defendants request \$1100 (\$210/hr. x 5 hrs., filing fee) for each motion against plaintiff and plaintiff's counsel of record, Kintzele Law Group, P.C., jointly and severally. The Court finds that \$960 (\$210/hr. x 4 hrs.,

\$120 filing fees) is a reasonable amount to be imposed against plaintiff and plaintiff's attorney of record, jointly and severally, in total for both motions.

ORDER

The motion to compel further documents is MOOT as to Nos. 2, 3, 4, 5, 19, 26, 29, and 30, DENIED as to No. 20, and GRANTED IN PART as to Nos. 25, 27, and 28, limited to the three years preceding the incident and to the body parts for which injuries are claimed.

The motion to compel further requests for admission is MOOT as to Nos. 11, 15, and 20, and DENIED as to No. 14.

The Court orders that plaintiff and plaintiff's attorney of record, Kintzele Law Group, P.C., jointly and severally, pay sanctions in the amount of \$960, within thirty days.

Defendants are ordered to give notice of ruling.